

		The motion is unopposed. The motion and supporting declaration comply with California Rules of Court, Rule 3.1324. The court may, in the furtherance of justice, and on such terms as may be proper, allow amendment of a complaint at any time before or after commencement of trial. (Code Civ. Proc. §§ 473, 576.) “There is a policy of great liberality in permitting amendments to the pleadings at any stage of the proceeding.” (<i>Sullivan v. City of Sacramento</i> (1987) 190 Cal.App.3d 1070, 1081.) Here, trial is set for 4/9/27 and there is no showing of prejudice arising from the proposed amendment. Therefore, the motion is granted. Plaintiff shall file and serve the amended complaint within 20 days of this order.
8.	HALBERDA VS. HIDDEN CANYON ESTATES HOMEOWNERS ASSOCIATION 2022-01299111	1. DEMURRER TO AMENDED COMPLAINT Defendants John Alevizos and Georgia Alevizos’ Demurrer is SUSTAINED in part as to 2nd cause of action without leave to amend the OVERRULED in part as to the 1st cause of action. The Alevizoses’ and Halberdas’ requests for judicial notice are granted as records of this court. Additionally, the Court takes judicial notice, sua sponte, of the signed stipulation dismissing the prior lawsuit with prejudice. (ROA 64, Case No. 30-2020-01145204-CU-BC-CJC.) <u>1st Cause of Action – Breach of Equitable Servitudes</u> “The prerequisite elements for applying the doctrine to either an entire cause of action or one or more issues are the same: (1) A claim or issue raised in the present action is identical to a claim or issue litigated in a prior proceeding; (2) the prior proceeding resulted in a final judgment on the merits; and (3) the party against whom the doctrine is being asserted was a party or in privity with a party to the prior proceeding.” (<i>Boeken v. Philip Morris USA, Inc.</i> (2010) 48 Cal.4th 788, 797, [cleaned up].) The Halberdas first claim they lacked privity with the HOA in the prior action because their claims in this case are in conflict with the prior settlement agreed upon. Privity requires the party in the prior proceeding represented the same legal right. (<i>Zaragosa v. Craven</i> (1949) 33 Cal.2d 315, 318.) The claim in the prior proceeding was whether the Alevizoses could maintain a fence on their property. (RJN, Ex. A.) The Sub-HOA was defending the prior proceeding to enforce the CC&Rs. (RJN, Ex. A.) Thus, part of the Halberdas’ claims in the first cause of action are precluded. “The Halberdas seek preliminary and permanent injunctive relief compelling the Defendants to rescind their settlement agreement ... and further compelling Defendants to remove any and all landscaping, fencing